

March 14, 2025

Faisal D'Souza

Technical Coordinator

Networking and Information Technology Research and Development (NITRD) National Coordination Office (NCO), National Science Foundation

2415 Eisenhower Avenue

Alexandria, VA 22314

Re: Request for Information (RFI) on the Development of an Artificial Intelligence (AI) Action Plan ("Plan")

Submitted electronically to: [REDACTED]

Dear Technical Coordinator D'Souza:

Health Level Seven (HL7) International welcomes the opportunity to provide feedback on the Development of an AI Action Plan RFI. This letter includes perspectives from our leadership and Policy Advisory Committee.

HL7 encourages NITRD NCO to actively engage our organization as the AI Action Plan is constructed and deployed. HL7 is a rich resource and has an innovative, dedicated AI Taskforce and Initiative as described below. Importantly also, we were early policy trailblazers in AI with public-private sector policy convenings, such as our May 2019 HL7 policy conference on healthcare interoperability, genomics and AI.

Regarding the highest priority policy actions that should be in the new AI Action Plan, HL7 recommends that the federal government should adopt voluntary consensus healthcare standards broadly in regulatory and subregulatory policies that govern the use of AI. This includes standards for creating, deploying, operating, measuring, reporting, and ensuring the needed transparency, safety, and privacy in use of AI. Adopting voluntary consensus standards that comply with the World Trade Organization's Agreement on Technical Barriers to Trade, such as American National Standards Institute (ANSI)-accredited American National Standards, is the optimal way for regulation to support the competitiveness of United States innovation in AI. HL7 emphasizes that the best organization to take on an AI standards effort should be a broad based and ANSI-accredited one. HL7 notes that the need for AI transparency is paramount.

HL7 also supports federal preemption of conflicting state laws to prevent undue burden and ensure consistent application and regulation of AI. When states impose conflicting standards, measures, and other requirements, then significant burdens can prevent achieving the potential benefits of AI.

More about HL7 and its AI Initiative, Work Groups, Accelerators and Other Efforts

HL7 is the global authority on healthcare interoperability and a critical leader and driver in the standards arena. As such, we stand ready to support NITRD NCO in better understanding the promises, complexities and challenges at the crossroads of standards, interoperability, policy and AI.

Specific to the development of an AI Action Plan, we highlight the following expert HL7 resources:

HL7 AI Taskforce

HL7 has a dedicated AI Initiative and Taskforce. Our organization is working on AI in collaboration with multiple partners -- in both the public and private sectors -- to develop standards, Implementation Guides (IGs) and related policies to ensure the reliability, safety and security of AI.

HL7 standards serve as the essential digital foundation that enables innovative companies and startups to securely access, analyze, and derive insights from healthcare data, accelerating the development of AI-powered solutions that can dramatically improve patient outcomes while reducing costs across the U.S. healthcare system. By supporting HL7 through the NITRD program, the federal government can unlock unprecedented market-driven innovation through ensuring standardized, interoperable health data exchange that allows new entrants and established players to compete based on the value they deliver rather than being blocked by proprietary data silos. This strategic investment in HL7 standards would catalyze a new wave of American healthcare entrepreneurship, enabling data-driven and AI-backed solutions to flourish in a competitive marketplace that rewards improved health outcomes, ultimately making healthcare more accessible, efficient, and effective for all Americans.

HL7 Work Groups, Accelerators and Other Efforts

HL7 Work Groups, FHIR Accelerators and special initiatives are conducting cutting-edge healthcare, interoperability and standards work very relevant to the development of an AI Action Plan. HL7 executive and policy leaders can facilitate structured, focused dialogue. We urge NITRD NCO to seek out the practical and field-leading expertise of these HL7 groups. A full HL7 Work Group listing and information on our Policy Advisory Committee can be accessed at:

<http://www.hl7.org/Special/committees/index.cfm?ref=nav>

<https://confluence.hl7.org/spaces/PAC/pages/76159333/Policy+Advisory+Committee+Home>

Should you have any questions about our attached comments, please contact Charles Jaffe, MD, PhD, Chief Executive Officer of Health Level Seven International at [REDACTED] or [REDACTED]. We look forward to continuing this discussion and offer our assistance to you on this topic that is critical to the future of our nation's healthcare.

Sincerely,

Charles Jaffe, MD, PhD
Chief Executive Officer
HL7 International

Julia Skapik, MD, MPH
Board of Directors, Chair
HL7 International

